

25STCV21622 25STCV21622

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-07

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Case Number: 25STCV21622 Hearing Date: July 7, 2026 Dept: 732

Itria Ventures, LLC v. Helen Anne residential Care

LLC, et al.

Tuesday, July 7, 2026

CASE NUMBER: 25STCV21622

UNOPPOSED

Plaintiff

Itria Investments LLC's Motion to Enforce Settlement and Enter Judgment against
Defendants Helen-Anne Residential Care, LLC, Fort Faith Home Care, LLC, Forth Faith
LLC, Fort Faith SLS, LLC, and
Nisha Fort _____

Facts:

This is an action for breach of contract. The Complaint alleges as follows.

Plaintiff Itria Investments, LLC ("Plaintiff") signed agreements with
Defendants Helen-Anne Residential Care, LLC, Fort Faith Home Care, LLC, Forth Faith
LLC, Fort Faith SLS, LLC, guaranteed by Defendant Nisha Fort ("Defendants") to
pay Defendants two lump sums of \$50,000 and \$15,000 in exchange for a portion
of Defendants' future accounts receivable, a lien on their assets, and regular
weekly payments. (Complaint ¶¶ 13–23.) Defendants have failed to make the
payments required. (Complaint ¶¶ 24–39.)

Procedural History: Plaintiff filed the Complaint on July 23,

2025, alleging

1.

Appointment of a Receiver

2.

Preliminary Injunction

3.

Breach of Written Contract

4.

Breach of Written Contract

5.

Breach of Written Contract

6.

Breach of Written Contract

A

notice of settlement was filed on October 1, 2025.

The

matter was dismissed on October 15, 2025.

Plaintiff

filed the present motion to enforce settlement on May 7, 2026. No opposition has been filed.

Analysis:

I.

MOTION TO ENFORCE SETTLEMENT

Code Civ. Proc. section 664.6 states that:

If parties to pending litigation stipulate,
in a writing signed by the parties outside of the presence of the court or
orally before the court, for settlement of the case, or part thereof, the

court, upon motion, may enter judgment pursuant to the terms of the settlement.

If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

“Section 664.6 permits the trial court judge

to enter judgment on a settlement agreement without the need for a new lawsuit.

[Citation.] It is for the trial court to determine in the first instance

whether the parties have entered into an enforceable settlement. [Citation.] In

making that determination, ‘the trial court acts as the trier of fact,

determining whether the parties entered into a valid and binding settlement.

[Citation.] Trial judges may consider oral testimony or may determine the

motion upon declarations alone. [Citation.] When the same judge hears the

settlement and the motion to enter judgment on the settlement, he or she may

consult his [or her] memory. [Citation.]’ [Citation.]” (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1359–1360.)

Plaintiff Itria Ventures, LLC (“Plaintiff”)

moves to enforce settlement and enter judgment against Defendants

Helen-Anne Residential Care, LLC, Fort Faith Home Care, LLC, Fort Faith LLC,

Fort Faith SLS, LLC, and Nisha Fort (“Defendant”). Based on a settlement

agreement executed in August 2025. (Smalbach Decl. ¶ 9, Exh. 1.) Per this

agreement, Defendants agreed to pay \$74,901.87, comprised of biweekly payments

of \$2,728.86 beginning on August 22, 2025. (Smalbach Decl. ¶ 10, Exh. 1.)

In September 2025 the parties agreed to modify the payment schedule to monthly

payments of \$5,457.72. (Smalbach Decl. Exh. 4.) Defendants have since then

defaulted on these payment obligations, leaving a balance owed of

\$50,262.02. (Smalbach Decl. ¶¶ 15–17.)

The

settlement agreement contains a clause permitting entry of stipulated judgment for

amounts owed in the event of default pursuant to Code of Civil procedure §

664.6, as well as attorney fees and prejudgment interest at a rate of 10%.

(Smalbach Decl. Exh. 1, ¶¶ 2, 8, 9.) This matter was dismissed without

prejudice with an express proviso for retained jurisdiction to enforce the

settlement. (See 10/13/2025 Request for Dismissal.)

Plaintiff

has demonstrated entitlement to entry of judgment in the amount of \$50,262.02,

plus \$2,781.54 in prejudgment interest dating from a December 18, 2025,
attorney fees in the amount of \$6,220.00 (for 23.1 hours of attorney and
paralegal work associated with the present motion at rates of \$200, \$275, and
\$300), plus \$60 in costs, for a total judgment of \$59,323.56. (Richards Decl.
¶¶ 2–4.) No opposition to the motion has
been filed.

The
motion is therefore GRANTED.

Superior Court of California

County of Los Angeles

Department 732

ITRIA VENTURES, LLC.;

Plaintiff,

vs.

HELEN-ANNE
RESIDENTIAL CARE, LLC, et al.;

Defendants.

Case No.:
25STCV21622

Hearing Date: July 7, 2026

[TENTATIVE] RULING RE:

Plaintiff Itria Investments LLC's Motion to Enforce
Settlement and Enter Judgment against Defendants Helen-Anne Residential Care,
LLC, Fort Faith Home Care, LLC, Forth Faith LLC, Fort Faith SLS, LLC, and
Nisha Fort

Plaintiff Itria

Investments LLC's Motion to Enforce Settlement and Enter Judgment against
Defendants Helen-Anne Residential Care, LLC, Fort Faith Home Care, LLC, Fort Faith
LLC, Fort Faith SLS, LLC, and Nisha Fort is GRANTED.

Plaintiff
to provide notice.

Dated: July 7, 2026

Hon.
Richard S. Kemalyan

Judge
of the Superior Court